

22STCV13449 22STCV13449

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-09

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Case Number: 22STCV13449 Hearing Date: July 9, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 9, 2026

Case Name: Hennig, Kramer, Ruiz & Singh, LLP v. Seretan, et al.

Case No.: 22STCV13449

Matter: Motion for New Trial

Moving Party: Defendant Wendy Seretan

Responding Party: Plaintiff Hennig, Kramer, Ruiz & Singh, LLP

Ruling: The Motion for New Trial is denied.

Plaintiff to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is an action in which Plaintiff Hennig, Kramer, Ruiz & Singh, LLP, Defendant Wendy Seretan's former attorney, claims that Defendant failed to compensate Plaintiff after Plaintiff was able to settle Defendant's case. On April 22, 2022, Plaintiff filed the operative Complaint asserting claims for (1) breach of contract, (2) breach of the implied covenant of good faith and fair dealing, (3) conversion, (4) quantum meruit, and (5) unjust enrichment.

On March 5, 2026, after a bench trial, the Court found "in favor of plaintiff as alleged in the complaint. Plaintiff is entitled to the lien amount of \$135,806.67. Plaintiff is entitled to the costs of the suit."

Defendant now seeks a new trial pursuant to Code of Civil Procedure section 657, asserting nine grounds, including procedural error regarding the Court's equity-first bifurcation, insufficiency of the evidence, and legal error.

Code of Civil Procedure section 657 provides the following grounds for granting a new trial motion: (1) "Irregularity in the proceedings"; (2) "Misconduct of the jury"; (3) "Accident or surprise"; (4) "Newly discovered evidence"; (5) "Excessive or inadequate damages"; (6) "Insufficiency of the evidence"; and (7) "Error in law."

Defendant contends that the Court's decision to try the equitable quantum meruit claim first was a procedural error because it determined disputed factual and contractual predicates before a jury could resolve them. The Court disagrees. Quantum meruit is a well-established equitable cause of action. Under California law, when a case involves both legal and equitable issues, a trial court has the discretion to try the equitable issues first without a jury, and if that determination is dispositive of the case, no jury trial is required. (*Raedeke v. Gibraltar Sav. & Loan Assn.* (1974) 10 Cal.3d 665, 671.) The Court properly exercised this discretion here.

Defendant challenges the evidence regarding standing, successor rights, and the justification for Plaintiff's withdrawal. The record reflects that Plaintiff presented substantial evidence at trial to support these findings. The Court found the withdrawal appropriate under both mandatory and permissive rules of professional conduct based on evidence of a breakdown in the attorney-client relationship. Evidence regarding the transfer of assets and continuity of the firm entities was admitted at trial and was sufficient to establish Plaintiff's standing as the successor in interest. The award of \$135,806.67 was based on the reasonable value of services, which the Court determined—based on over 450 hours of documented work—could have justified an even higher award. The Court exercised its equitable discretion to award the lower lien amount.

A new trial is a purely statutory remedy and is granted only on the grounds enumerated in Code of Civil Procedure section 657. Defendant has failed to establish that the Court's decisions were "against law," that there was a "miscarriage of justice," or that the evidence clearly compelled a different decision. Furthermore, because the trial lasted less than eight hours, the doctrine of implied findings applies, presuming the Court made all factual findings necessary to support the judgment.

Therefore, the Motion is denied.

Plaintiff to give notice.